

August 7, 2014



U.S. Department
of Transportation

East Building, PHH-30
1200 New Jersey Avenue S.E.
Washington, D.C. 20590

**Pipeline and Hazardous
Materials Safety Administration**

DOT-SP 13083
(FOURTH REVISION)

EXPIRATION DATE: July 31, 2018

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: Rockwood Pigments NA, Inc.
St. Louis, MO
2. PURPOSE AND LIMITATION:
 - a. This special permit authorizes the transportation in commerce of a self-heating solid material in UN13H2 or UN13H3 intermediate bulk containers (IBCs). This special permit provides no relief from the Hazardous Materials Regulations (HMR) or the International Maritime Dangerous Goods (IMDG) Code other than as specifically stated herein. The most recent revision supersedes all previous revisions.
 - b. The safety analyses performed in development of this special permit only considered the hazards and risks associated with transportation in commerce.
 - c. No party status will be granted to this special permit.
 - d. This special permit serves as an "approval" under Chapter 4.1, Section 4.1.3.7 and Chapter 7.9, Section 7.9.2 of the IMDG Code and as a "Competent Authority Approval" as defined in 49 CFR 107.1.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180 and the IMDG Code.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR §§ 172.101 Hazardous Materials Table, Column 7, Special Provision IB6, 172.102(c)(4) Table 1. - IBC CODES, IBC Code IB6 and 173.241

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and the Chapter 3.2, Column 8 Instruction IBC06 and Chapter 4.1, Packing Instruction IBC06 of the IMDG Code in that flexible IBCs are not authorized, except as authorized herein.

5. BASIS: This special permit is based on the application of Rockwood Pigments NA, Inc. dated October 28, 2013, submitted in accordance with § 107.109.
6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Hazardous Materials Description			
Proper shipping name	Hazard Class/ Division	Identification Number	Packing Group
Self-heating solid, inorganic, n.o.s. (contains black iron oxide)	4.2	UN3190	II

7. SAFETY CONTROL MEASURES:

a. PACKAGING - Packagings prescribed are UN13H2 or UN13H3 intermediate bulk containers (IBCs) containing a maximum of 2,500 pounds (net) of hazardous material. Under the terms of the IMDG Code, prescribed packagings must also conform to Chapter 4.1, Sections 4.1.1, 4.1.2, and 4.1.3. When shipped in accordance with the IMDG Code, no more than 2,000 pounds of hazardous material may be packaged in hermetically sealed UN13H3 IBCs.

b. TESTING - Each UN13H2 or UN13H3 IBC must be capable of passing the tests at the Packing Group II Performance level specified in 49 CFR Subpart O.

c. OPERATIONAL CONTROLS -

(1) All IBCs must be held a minimum of five days after packaging and a determination made that the material temperature does not exceed 100°F prior to offering for transportation.

(2) Each IBC must be transported in a closed freight container.

8. SPECIAL PROVISIONS:

a. Under the terms of this special permit, the special permit grantee may only offer hazardous materials (i.e., the special permit grantee is not authorized as a carrier).

b. A person who is not a holder of this special permit who receives a package covered by this special permit may reoffer it for transportation provided no modification or change is made to the package and it is reoffered for transportation in conformance with this special permit, the HMR, and the IMDG Code.

c. A current copy of this special permit must be maintained at each facility where the package is offered or reoffered for transportation.

d. Each IBC must be plainly and durably marked "DOT-SP 13083" as specified in §§ 172.302(b) and (c).

e. This special permit in no way affects the need to obtain any required authorizations from other agencies of the United States Government or from the competent authorities of countries of origin, transit, and destination.

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle, rail freight, and cargo vessel.

10. MODAL REQUIREMENTS: A current copy of this special permit must be carried aboard each cargo vessel or motor vehicle used to transport packages covered by this special permit.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:

- o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.

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- o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when this special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU)- 'The Hazardous Materials Safety and Security Reauthorization Act of 2005' (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term "exemption" to "special permit" and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 Immediate notice of certain hazardous materials incidents, and 171.16 Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:



for Dr. Magdy El-Sibaie
Associate Administrator for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Materials Safety Administration, Department of Transportation, Washington, D.C. 20590. Attention: PHH-31.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at

http://hazmat.dot.gov/sp_app/special_permits/spec_perm_index.htm

Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: DB/Nicks